BACKGROUND TO THE INVESTIGATIONS

1. The Kenya National Commission on Human Rights (KNCHR) has, since July 2007, been investigating complaints in respect of alleged executions and disappearance of persons attributed to the Kenya Police.

2. Pursuant thereto, on 5/11/07, the KNCHR released a preliminary report indicating that the Kenya Police could have been complicit in extra-judicial executions of close to 500 people between June and October 2007 and the bodies deposited in various mortuaries in the country, some left in the wild and others dumped in various locations such as forests, desolate farms, rivers and dams.

3. This report was transmitted to the President of the Republic of Kenya H.E. Mwai Kibaki and made available to all the relevant Government departments asking that the concerned authorities act on its findings. The KNCHR was therefore surprised that instead of acknowledging the gravity of the issues raised in the report, the Police Commissioner, Maj. General Hussein Ali reacted by calling the KNCHR a meaningless busybody which had engaged in baseless accusations against the police and further accused the KNCHR of lacking expertise in carrying out investigations. The Police Commissioner also challenged the KNCHR to “provide any evidence to these rather infantile accusations”. Subsequently, the Kenya Police issued its official rejoinder to the KNCHR report. The Police rejoinder does not deny the fact of the deaths but merely states that inquest files have been opened.

4. Be that as it may, the KNCHR proceeded with further investigations to complete its report and the ensuing findings confirm the substance of the preliminary report and reveal egregious violations of the law and fundamental human rights by the Kenya police in dealing with suspected Mungiki members and other alleged criminals.

5. While the KNCHR in no way condones the atrocities attributed to Mungiki and other illegal gangs (see Annex 1 for a background on the Mungiki Movement), it condemns the use of extra-judicial killing of suspected members as a strategy to deal with the illegal group. Methods attributed to the Police and chronicled in this report amount to a serious violation of human rights especially the right to life and the right to a fair trial before a court of law.